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Case Name: *Raymond Tesconi v. Dark Run Ventures, Inc., et al.*

Case No.: 24CV435406

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant William Stuart (“Stuart”) moves under Code of Civil Procedure Sections 2023.010, 2023.030, and 2030.300(e) for a terminating sanction against Plaintiff Raymond Tesconi (“Tesconi”) for Tesconi’s failure to comply with the Court’s Order of August 29, 2025 to serve verified full, complete, Code-Compliant responses without objections to Special Interrogatories and to pay a monetary sanction of \$751.25 within 30 days of service of the August 29, 2025 Order. Notice of Motion (the “Motion”) at 2:6-22 (filed: Nov. 17, 2025). In addition, Stuart here seeks a monetary sanction of \$2,232.50 against Tesconi for Stuart’s reasonable attorneys’ fees and costs for this Motion.

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Chronology matters.

Indeed, as will be explained below, the chronology of events for this specific Motion is all that saves Tesconi from terminating sanctions right now.

The legal standard for imposing terminating sanctions for violation of a discovery Order is clear and undisputed by the parties. To impose terminating sanctions against Plaintiff, the Court must find all these three facts:

Fact No. 1: Plaintiff violated a Court Order for discovery;

Fact No. 2: That violation was willful;

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiff with his discovery obligations.

R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal. App. 4th 486, 496-496; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992.

Regarding Fact No. 1, the Court finds as a matter of fact that Plaintiff in this case has violated multiple Court Orders for discovery—including but not limited to the August

29, 2025 Order that is the subject of this Motion⁶ —by failing to provide timely responses as Ordered to five sets of discovery requests served on him in this case as of November 17, 2025 when the current Motion was filed (Def. Memo. of Points & Authorities In Support of Motion at 6:3-7). Plaintiff does not dispute this point, but rather tries to deflect from it by saying he’s been ill. So Fact No. 1 for the Court to impose terminating sanctions is found here.

Regarding Fact No. 3, whether imposition of lesser sanctions like issue or evidentiary sanctions would bring about compliance with Plaintiff with his discovery obligations, the Court finds as a matter of fact that, unfortunately, lesser sanctions would *not* bring about Plaintiff’s compliance in this case. The Court’s careful review of the voluminous record of multiple motions to compel discovery that Defendant has been forced to bring in this case, as well as the Court’s repeated Orders granting those motions to compel against Tesconi, shows beyond any doubt that because Tesconi has failed to respond to such a broad range of authorized discovery requests on every conceivable issue in the case *and* on every conceivable item of evidence in the case, that if the Court were now to impose issue or evidentiary sanctions against Tesconi for his multiple, comprehensive, repeated discovery violations, it would not bring about his compliance—*because there would be nothing left of the case*. There would be no issues left to litigate; there would be no evidence that Tesconi could present to the jury at trial. So, given these extreme circumstances, imposing issue or evidentiary sanctions would *not* bring about Tesconi’s compliance but would rather end the case. So Fact No. 3 for the Court to impose terminating sanctions is found here.

Which leaves Fact No. 2—whether Tesconi’s violation of the Court Order was willful—which California law *requires* the Court to find to impose to impose *terminating* sanctions here.⁷ So the precise issue of whether the Court will impose terminating sanctions for this Motion hinges on this point: does the Court find now as a matter of fact that Tesconi’s violation of the specific discovery Order at issue here of August 29, 2025 (see fn. 1 above) was willful? In considering this pivotal issue, it is instructive to consider this Court’s reasoning on this same point in the Court’s Order on (yet another) motion for terminating sanctions brought by Defendant against Tesconi, an Order which the Court filed, issued, and served on Tesconi earlier this year on February 11, 2026.

The chronology of events regarding *that* motion which the Court’s February 11, 2026 Order resolved are important. That motion was filed on November 18, 2025 (a day after the pending Motion was filed on November 17, 2025), and concerned a violation by Tesconi of the Court’s October 15, 2025 Order compelling discovery. Of practical

⁶ See Notice of Motion at 2:12-18 (“The motion is based on the fact that the Court issued an order on August 29, 2025 for Tesconi to serve a verified, full, and code compliant responses without objections to the special interrogatories that had been served on him and . . . Tesconi has disobeyed the Court’s ruling[.]”)

⁷ *R.S. Creative, Inc.*, 75 Cal. App. 4th at 495, *supra* (terminating sanctions for violating a discovery Order *require* a finding that the violation was willful).

significance was the fact that the October 15, 2025 Order was the first discovery Order issued by the undersigned Judge after he was assigned as Civil Case Manager over this case that Tesconi violated—which in the eyes of this Judge logically affects the basis of Court’s knowledge, experience, and ability to reasonably *infer* whether the violation of that Order was *willful* to impose terminating sanctions. So in its February 11, 2026 Order, the Court analyzed this key point on *when the Court can and will reasonably infer* that Tesconi *willfully* violated a Court Order as follows:

Defendant accurately points out that throughout 2025 it was forced to bring four separate discovery motions against [Tesconi], and was also forced to litigate multiple meritless motions for reconsideration brought by [Tesconi] of the Orders granting [the discovery motions.] Defendant’s position, which has merit, [is that] Plaintiff’s ***willful*** failure to comply with the October 15, 2025 Order *may be reasonably inferred* from his pattern and practice of serial discovery violations in this case.

... [T]he Court, in the broad exercise of its discretion, will give [Tesconi] this *one chance* before imposing terminating sanctions in this case. After all, this is the first discovery order of the undersigned Judge that Plaintiff violated. It will be the last. One more violation by Plaintiff and this case is over.

After being given this last full and fair chance to comply with all discovery obligations and orders, *the next time* Plaintiff violates them the Court *can and will infer that such violation is willful*. And the unavoidable result will be terminating sanctions.

Order Granting In Part & Denying In Part Terminating Sanctions (filed and served: Feb. 11, 2026). As the Court there set a clear red line putting Tesconi on notice that terminating sanctions would result the next time he violates a discovery order after this February 11, 2026 Order, it is fair and logical for the Court to infer that Tesconi acts *willfully* if he violates a discovery Order after this warning.⁸ In other words, if he violates a discovery order *after* this clear February 11, 2026 Order, Tesconi will knowingly and voluntarily waive by his own willful misconduct his right to trial by jury in this case. One *more* violation and this case is over.

Applying this analytical framework to the present Motion is straightforward. The discovery Order that this specific Motion (filed on November 17, 2025) concerns was issued on August 29, 2025, and served by Defendant on Tesconi on September 10, 2025. Declaration of Joyce K. Lau in Support of Motion at ¶¶ 6-7 (filed: Nov. 17, 2025). As that

⁸ Mindful that finding a willful violation of a Court Order will have the practical result of ending Tesconi’s case before trial, the Court in crafting this rule of when it can and will infer that Tesconi’s violation is willful here carefully balanced important interests that our judicial system has in trial by jury *and* in compliance with the Court’s Orders.

Order required Tesconi to provide discovery responses within 30 days of service, *id.* at ¶ 8, the alleged violation occurred on *October 10, 2025*—months *before* the February 11, 2026 Order set the red line as explained above, *not after*. Hence, given this chronology and the plain text of the Court’s February 11, 2026 Order on when it can and will infer that Tesconi acted willfully in violating a discovery order, the Court does *not* find that Tesconi’s violation of the August 29, 2025 Order (the precise subject of this Motion) was willful. This violation happened before the Court set down the clear red line. Chronology matters.

As the Court has not found the required Fact No. 2 that Tesconi’s violation of the August 29, 2025 Order was willful, the Court respectfully **DENIES** this Motion insofar as it requests terminating sanctions now for violation of the August 29, 2025 discovery Order.

That said, the Court is keenly aware that Defendant has brought yet another Motion for Terminating Sanctions against Tesconi that is noticed and set for hearing on November 20, 2026. Notably, Tesconi is alleged there to violate a discovery Order signed, filed, and served on Tesconi on *February 18, 2026*—*after* the *February 11, 2026* Order set down the clear red line discussed above. While the Court does not now make any findings of fact or rulings of law on that motion noticed for November 20, 2026, as it is not yet fully briefed, chronology will matter there too.

Regarding Defendant’s additional request in the pending Motion noticed for today for monetary sanctions in the amount of \$2,232.50, that request is **GRANTED**. This Court has discretion and authority to impose a monetary sanction in this case now against Tesconi for his misuse of the discovery process for violating the Court’s discovery Order of August 29, 2025. More specifically, the Court has wide discretion to award reasonable attorneys’ fees and costs incurred by Defendant’s counsel for this Motion. Here, Defendant seeks \$2,232.50, comprising of 5.5 hours of attorney time at \$395.00 per hour, plus a \$60.00 filing fee. The Court finds that the hourly rate sought of \$395.00 is reasonable considering the relevant market and nature of this motion, that 5.5 hours of attorney time is reasonable for the work incurred by Defendant to bring and argue this Motion, and that the \$60.00 filing fee is a reasonable cost.

Hence, as the amount of \$2,332.50 sought for a monetary sanction for Defendant’s attorneys’ fees and costs is reasonable, the Court **ORDERS** Tesconi to pay \$2,232.50 within 30 days of today to The Fuller Law Firm, P.C. Client Trust Account, delivered to 60 No. Keeble Avenue, San Jose, CA 95126.

Conclusion and Order

For the reasons explained above, Defendant’s Motion is **Granted In Part and Denied In Part** as follows. Specifically, the Court **ORDERS**:

- Defendant’s Motion for terminating sanctions for Tesconi’s violation of the Court’s August 29, 2025 discovery order is **DENIED**; and

- Defendant's Motion for monetary sanctions in the amount of \$2,332.50 is **GRANTED**. More specifically, the Court **ORDERS** Tesconi to pay \$2,232.50 within 30 days of today to The Fuller Law Firm, P.C. Client Trust Account, delivered to 60 No. Keeble Avenue, San Jose, CA 95126.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Scott Johnson v. Blvd Coffee Inc., et al.*

Case No.: 25CV457671

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Scott Johnson (“Plaintiff”) moves for attorneys’ fees and costs in the amount of \$39,638.60, reflecting a 1.25 multiplier on \$29,275.00 in attorneys’ fees and \$2,435.88 in costs, pursuant to the Judgment entered and the agreement of the parties. Notice of Motion (the “Motion”) at 3:3-7 (filed: Nov. 10, 2025); Reply Declaration of Dennis Price In Support of Motion (“Price Reply Decl.”) at ¶ 6 (filed: June 15, 2026).⁹

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolving this Motion is straightforward.

On January 28, 2025, Plaintiff filed his Complaint against Defendant Blvd Coffee Inc., a coffee shop in Los Gatos, California, alleging that this small coffee shop is liable for violations of the Americans with Disabilities Act (“ADA”), e.g., that its different types of dining tables are not ADA compliant. Complaint at ¶¶ 27, 57 (filed: Jan. 28, 2025).

A review of the case docket and record shows that between March 7, 2025 and April 25, 2025, the parties briefed but did not argue Defendant’s motion to quash service of summons because this motion was withdrawn as moot as Defendant obtained leave to file and did file its Answer on May 6, 2006. *See* April 25, 2025 Minute Order (motion to quash hearing moot if Defendant has filed its responsive pleading on or before May 7, 2025); Answer (filed: May 6, 2025).

A bit over a month after Defendant filed its Answer on May 6, 2026, Plaintiff served a C.C.P. § 998 Offer of Judgment on Defendant, which is dated and signed by Plaintiff’s counsel Christopher A. Seabock on June 18, 2025. Declaration of Dennis Price in Support of Motion (“Original Price Decl.”) (filed: Nov 10, 2025) at Ex. 6 (executed

⁹ While Plaintiff in his original moving papers here requested a total award of fees and costs of \$39,076.10, reflecting a 1.25 multiplier on \$28,825.00 in fees and \$2,435.88 in costs, in his Reply papers he increased one entry from 4.00 hours of attorney time to prepare the Reply papers to 4.60 hours to prepare the Reply papers (at \$750 per hour). Price Reply Decl. at ¶ 6. Hence, the total award of fees and costs requested increased from \$39,076.10 to \$39,638.60.